

application documents as a whole would conclude, without further information, that the channel would be enclosed on all sides.

The patent at issue in T. 578/08 contained only device claims, whereas the previous application contained only process claims (the description and the drawings being largely identical). However, the board found that the wording of the previous application's claim 1 already presupposed structural device components in addition to specifying process steps that could only be performed by suitable – and so structural – technical means. General technical means suitable for performing the specified functions were therefore implicitly disclosed. Besides, the previous application repeatedly explained that the process described and claimed was performed automatically, which likewise called for suitable technical means. Priority was thus validly claimed.

b) Example cases – features of the invention not all disclosed in the priority document

In T. 1052/93 it was a feature of the wash adjunct products claimed in the European patent that they contained sodium perborate monohydrate in conjunction with a **functionally defined activator**. The priority document only mentioned certain activators complying with the functional definition in the European patent; these specific compounds could not be considered to disclose the broad group of activators functionally defined in claim 1 of the European patent. See also T. 132/09.

In T. 277/95 the board found that a claim to a method of producing in CHO cells hEPO characterised by the presence of a specific **glycosilation pattern** did not enjoy priority from a priority application which made available the cell line but gave no information on the specific glycosilation pattern. See also T. 479/97.

In T. 908/09 the board concluded that the priority document did not clearly allocate to one single group the classes of substances which were named in granted claim 1 as components b). Accordingly, the skilled person could not derive directly and unambiguously from the priority document a mixture of at least one substance a) with at least one substance b), as was required by claim 1.

See also T. 379/13 and T. 1487/16.

In T. 521/10 the enabling disclosure for the embodiment of claim 1 relied on the content of patent applications incorporated by reference. The reference to one of these (D9) was not present in the priority document. Indeed, D9 was not filed until after the claimed priority date. Therefore, as far as the subject-matter of claim 1 was based on the disclosure of D9, the priority was not validly claimed. As D9 was published before the filing date, it was pertinent prior art. See also summary of this decision in chapter II.C.4.2.

In T. 846/10 the US priority application P1 claimed (on Form PTO/SB/01 (12-97)) the benefit under 35 U.S.C. 119(e) of two provisional applications P2 and P3. The board rejected the appellant's claim that their contents were for this reason to be considered incorporated by reference into the disclosure of P1; P1 itself contained no mention of "incorporated by reference" or any equivalent expression.

3.1.6 Enabling disclosure in the priority document

The decisions below highlight that the priority document must disclose the invention claimed in the subsequent application in such a way that it can be carried out by a person skilled in the art.

In T 81/87 (OJ 1990, 250) the board took the view that the argument that the skilled person would supplement the disclosure from his common general knowledge to make it work, should any difficulty be encountered, was no excuse when this was a feature of the definition of the invention, and was missing, not envisaged by the inventor and not implied by the description. In order to give rise to priority rights the essential elements, i.e. the features of the invention, in the priority document had to be either expressly disclosed or directly and unambiguously implied in the text as filed; missing elements recognised as essential only later on were not part of the disclosure, and gaps with regard to basic constituents could not be retrospectively filled by relying on knowledge acquired in this manner. It could become a misuse of the priority system if some parties in a competitive situation were allowed to jump ahead of others on the basis of mere expectations and by omitting the critical features of the invention altogether. This decision was followed in e.g. T 301/87, OJ 1990, 335, and in T 296/93, OJ 1995, 627.

The board in T 301/87 (OJ 1990, 335) considered that if an entity itself is disclosed to the skilled person, this does not necessarily mean that a component part is also disclosed for the purpose of priority if this cannot be envisaged directly and unambiguously as such, and requires considerable investigation to reveal its identity.

In T 296/93 (OJ 1995, 627) the board rejected the argument that the priority document was deficient in respect of relevant technical information necessary for reducing the claimed invention to practice by the person skilled in the art without undue burden. See also T 207/94 (OJ 1999, 273), T 767/93, T 20/04.

In T 919/93 the board found that certain passages in the European application as filed, essential for the application to meet the requirements of Art. 83 EPC 1973, had no counterpart in the priority document, which was thus not enabling for the claimed subject-matter.

In T 843/03 the board referred to the requirement that the priority document provide an enabling disclosure (T 81/87, OJ 1990, 250; T 193/95). It had been established in a number of board of appeal decisions that sufficiency of disclosure presupposes that the skilled person is able to obtain substantially all embodiments falling within the ambit of the claims and that he/she, in order to reach this goal, may not be confronted with an undue burden. Based on previous case law on the requirement of Art. 83 EPC 1973 (T 19/90, OJ 1990, 476) and on the novelty requirement (T 464/94) the board concluded that, when an applicant provided a technical disclosure and **prima facie evidence** as to certain technical elements in an application, **it was the EPO which had the burden of proof** when judging that something was not shown. The board held that the examining division had not taken the legally appropriate approach when deciding to the disadvantage of the applicant with the reason that "[...] no absolute fact can be deduced from figure 7 as to

whether it shows correctly formed HPV 16 particles or not". The board did not see full proof of such facts as a requirement within the framework of the EPC and could not see any serious doubts of the examining division substantiated by verifiable facts.

In T 903/05 the board, in applying G 2/98 (OJ 2001, 413), saw no legal basis for imposing additional criteria such as the presence of experimental data in the priority document which made it plausible that the invention would work. The board was furthermore convinced that the experimental data which were present in the patent and not in the priority document did not change the nature of the invention disclosed. See also T 1834/09.

According to the board in T 107/09, the antibody MR1 was indispensable in order to reproduce the invention of claim 1. The "written" disclosure in the earlier US application from which priority was claimed, even if supplemented by common general knowledge, would not enable the skilled person to carry out the invention. The hybridoma cell line producing the antibody MR1 had been deposited with the ATCC (American Type Culture Collection) only after the filing date of the earlier application. In view of the absence of explicit provisions in the EPC as to when a deposit of biological material had to be made in relation to an earlier application (R 28 EPC 1973 being concerned with European applications), the board referred in particular to decision G 1/03, according to which the requirement of sufficiency of disclosure had to be complied with – in relation to an earlier application from which priority was claimed – at the date of filing of that application. Thus, the board reasoned, if the deposit of biological material was necessary for the requirement of sufficiency of disclosure to be fulfilled for a "priority application", the deposit of this material had to have been made no later than the date of filing of that earlier application. This was not the case here.

3.1.7 Error margins and definitions of limits

Prior to G 2/98 (OJ 2001, 413), it was sometimes possible to claim error margins or definitions of limits which differed in the subsequent application from the original one (see T 212/88, OJ 1992, 28; T 957/91; T 65/92; T 131/92 and "Case Law of the Boards of Appeal of the EPO", 3rd ed. 1998, p. 231 et seq.). Since the facts are only comparable up to a certain point, it is not possible to say unequivocally to what extent the principles laid down earlier still apply. In the decisions below, G 2/98 was applied.

In T 201/99 claim 1 referred to a **mean residence time** of "1-10 minutes", whereas both priority applications disclosed the range "from about 1-6 minutes" (claim 1) or, for all the examples, a specific residence time of "about 3 minutes". The board found that the features disclosed in the priority applications provided no explicit or implicit disclosure of a process wherein the second step lasted "10 minutes". Therefore it was apparent that they were insufficient to render directly and unambiguously disclosed therein also the whole range of "1-10 minutes". The board did not accept the appellant's argument that the upper limit of "6 minutes" for the time length of the second step was not disclosed in the priorities as a cut-off value (i.e. as possibly related to the function of the invention and its effect) and thus constituted a feature which might be modified without changing the nature of the invention.

In T.250/02 the board found that the subject-matter of a claim for a herbal essential oil in which the total amount of carvacrol and thymol was at least 55%, and preferably 70%, by weight of the said essential oil and with exact ratios of carvacrol to thymol could not be derived directly and unambiguously from a priority document only disclosing a herbal oil containing "thymol and carvacrol in levels of 55% to 65%".

Further decisions concerned with differing ranges indicated in a priority document and disputed sets of claims include T.903/97, T.909/97, T.13/00, T.136/01, T.423/01, T.788/01, T.494/03 and T.537/03.

3.1.8 Selection from generic disclosure

A generic disclosure implicitly encompassing two or more alternative embodiments cannot generally give rise to a right of priority in respect of one specific embodiment that is **neither explicitly nor implicitly** disclosed (T.61/85; also T.30/01 below).

In T.85/87, the priority document disclosed a generic chemical formula, while a dependent claim of the application in suit was directed to a specific compound. Applying the principles which it had previously developed with respect to the novelty of specific (individual) chemical compounds over a generic disclosure of a group of compounds, the board concluded that the specific compound was not disclosed in the priority document. Therefore the subject-matter of the dependent claim was not entitled to priority and, as a result, was anticipated by the disclosure of the same specific compound in another European patent application within the meaning of Art.54(3) EPC.

According to the board in T.77/97, a chemical compound according to a dependent claim in a European patent application could not be granted priority simply because it fell within the scope of the claims in the priority document, and so was covered by its disclosure, and could be readily prepared on the basis of the information provided there (see T.409/90, OJ 1993, 40). Art. 88(4) EPC required, moreover, that the elements for which priority was claimed, i.e. all the features essential for defining the chemical compound, including those distinguishing it from the generic group disclosed and claimed in the priority document, be specifically disclosed in that document. In the case in hand, the board found that each of the compounds according to claims 4 and 5 were part of the "purely conceptual content" of the priority document's claim 3 but not part of its actual teaching. That meant they could not be regarded as "specifically disclosed" by this document, and so the two claims could not be granted the claimed priority. See also T.295/87 (OJ 1990, 470).

T.30/01 concerned an apparatus for optical imaging and measurement. The board noted that the description of the priority document unmistakably indicated the provision of the light steering means "in the sample arm". This precise disclosure deprived of support the appellant's construction of the disclosure as implicitly disclosing the provision of the light steering means in and outside the probe as two complementary alternative implementations – let alone as disclosing any specific one of these two alternatives by way of "implicit disclosure" by reference to common general knowledge (T.823/96, T.744/99 and T.818/00). According to the criterion consistently applied by the boards of appeal, a generic disclosure **implicitly encompassing two or more alternative embodiments** can

generally not give rise to a right of priority in respect of a **specific one of the embodiments** that is neither explicitly nor implicitly disclosed (T. 61/85) the latter criterion being a particular form of the "disclosure test" laid down in G. 2/98 (OJ 2001, 413) and constituting the logical corollary of the established principle – confirmed in G. 2/98 (see also T. 744/99) – that no right to priority can be acknowledged for an invention that is regarded as novel over the disclosure of the corresponding priority document.

Subsequent decisions T. 788/01, T. 899/04, T. 70/05 and T. 971/08 also applied the principle that a generic disclosure cannot provide priority for a specific embodiment not disclosed in the priority document.

3.1.9 Inventions relating to nucleotide and amino acid sequences

In T. 923/92 (OJ 1996, 564) claim 1, the subject-matter of which was defined by means of a reference to the amino acid sequence of Figure 5, was held not to be entitled to priority from earlier applications P1 and P2, in which that amino acid sequence was not disclosed. The sequence reported in Figure 5 was observed to differ from that of Figure 5 of P1 and P2 in respect of three amino acids. In the board's judgment, the skilled person would consider the reference to the amino acid sequence of a protein as a primary technical feature linked to the character and nature of the product. Evidence from the patentee was restricted to the testing of a limited number of parameters and constituted at most proof of similarity, not of identity of the two polypeptides. These differed in one essential characteristic, i.e. the primary amino acid sequence.

In T. 351/01 a polynucleotide which was the subject-matter of claim 1 was characterised both in structural terms and by its function. Priority documents I and II disclosed a polynucleotide having the same function as that of the polynucleotide of claim 1. However, its structure differed from that of the polynucleotide of claim 1 by five bases, all found in the part of the sequence which does not relate to the function i.e. outside of the coding region. The board, referring to the Enlarged Board's opinion G. 2/98 (OJ 2001, 413), which had rejected an extensive or broad interpretation making a distinction between technical features which are related to the function and effect of the invention and technical features which are not, concluded that the subject-matter of claim 1 could not be seen as the same subject-matter as that disclosed in the priority documents. See also decision T. 1213/05.

In T. 30/02 the board held that the presence of two additional guanine residues in the nucleotide sequence disclosed in an application cited in this case under Art. 54(3) EPC 1973 resulted in a different molecule that was not directly and unambiguously derivable from the earlier application from which priority was claimed. It was generally acknowledged in the case law of the boards of appeal that the nucleotide sequence of a nucleic acid represents an essential feature linked to the character and nature of the nucleic acid as such, and, where the nucleotide sequence is a coding sequence, also of the encoded protein (see T. 923/92, OJ 1996, 564). The skilled person was aware of the fact that even a minimal modification of the nucleotide sequence may result in a different nucleic acid not only from the structural but also from the functional point of view. See also decision T. 70/05.